

HOUSE No. 167

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders and Priscila S. Sousa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to create a competitive cannabis testing program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/16/2025</i>

HOUSE No. 167

By Representatives Saunders of Belchertown and Sousa of Framingham, a petition (accompanied by bill, House, No. 167) of Aaron L. Saunders relative to cannabis testing. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to create a competitive cannabis testing program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 94G of the General Laws, as so appearing, is hereby
2 amended by inserting after the definition of “Residual solvent” the following definitions:-

3 “Reduced testing allowance” means a Cannabis Control Commission certification
4 program to allow marijuana establishments, who have passed all required testing protocols of
5 every harvest batch that it produced during at least a six-week period (minimum 42 days), but no
6 longer than a 12-week period (maximum 84 days), to apply for privileges of a reduced testing
7 period for a specific product for a period of 1-year.

8 SECTION 2. Section 1 of chapter 94G of the General Laws, as so appearing, is hereby
9 amended by inserting after the definition of “Residual solvent” the following definitions:-

10 “Sample” means any item collected from a Marijuana Establishment that is provided to
11 an Independent Testing Laboratory for testing, including, but not limited to, Marijuana,
12 Marijuana Concentrates and Vape Cartridges, Marijuana Products, and clones. for marijuana

establishments for all required testing protocols if every harvest batch that it produced during at least a six-week period (minimum 42 days), but no longer than a 12-week period (maximum 84 days) has passed all required testing protocols by the CCC.

SECTION 3. Section 1 of chapter 94G of the General Laws, as so appearing, is hereby amended by inserting after the definition of “Terpenoid” the following definitions:-

“Test Batch” means a group of samples that are derived from a single Cultivation Batch, Production Batch, or Seed-to-sale tracking System package, and that are collectively submitted to an Independent Testing Laboratory.

SECTION 4. Section 15 of chapter 94G, as so appearing, is hereby amended by inserting in the first sentence of subsection (a) paragraph (1) after the word “products” the following words:-

“, and a Reduced Testing Allowance certification program”

SECTION 5. Section 15 of chapter 94G, as so appearing, is hereby amended by inserting in the second sentence of subsection (a) paragraph (1) after the word “ingredients” the following words:-

;provided however that the commission shall establish regulations for sampling of batches requiring each Test Batch of marijuana to be submitted for testing to be comprised of a representative selection of Samples. Each Test Batch of marijuana must be comprised of at least the following number of separately taken Samples, which may be submitted for testing:

(i) For Cultivation Batches weighing up to 20 pounds, a minimum of eight separate 0.5 gram Samples must be combined into one 4 gram Sample and submitted as one Test Batch.

34 (ii) For Cultivation Batches weighing 20 pounds or more but less than 40 pounds, a
35 minimum of 15 separate 0.5 gram Samples must be combined into one 7.5 gram Sample and
36 submitted as one Test Batch.

37 (iii) For Cultivation Batches or weighing 40 pounds or more but less than 100 pounds,
38 a minimum of 23 separate 0.5 gram Samples must be combined into one 11.5 gram Sample and
39 submitted as one Test Batch.

40 (iv) For Cultivation Batches weighing 100 pounds or more, a minimum of 29 separate
41 0.5 gram Samples must be combined into one 14.5 gram Sample and submitted as one Test
42 Batch.